# BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

**Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.**

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**Department: DCCED** **Date: 5/21/2026**

**Bill Number: HB 126**

**Short Title (as it appears on BASIS): REINSTATEMENT NATIVE CORP/RELIGIOUS CORP**

**What action do you recommend the Governor take?**
*Select one.*

☐ **SIGN** ☐ **VETO** ☒ **LWOS**

**Action Justification – Why do you recommend the above action?**

The division is neutral on this bill but has concerns about transparency.

This bill would impact the public by reducing the number of Alaska Native Claims Settlement Act ("ANCSA") corporations that are required to provide annual reports and proxy solicitation materials to the division. These materials and reports are posted by the Alaska Division of Banking and Securities ("division") for the public. Alaska Native shareholders rely on the division to remove hurdles to information and aid shareholders in obtaining relevant information from corporations. ANCSA corporations are exempt from the federal Securities and Exchange Commission's ("SEC") filing requirements, leaving the division as the sole regulator to ensure transparency between ANCSA corporations and their shareholders. ANCSA corporations and their shareholders rely on the division in regulating the truthfulness of shareholder proxy solicitations. Reduced transparency between shareholders and their corporations with no regulation or oversight of election materials, could impact shareholders and the public. This bill benefits ANCSA village corporations and the division expects those corporations would prefer to have fewer disclosure requirements.

There is a zero fiscal note. The division does not anticipate fiscal impact from this legislation.

**What does this Bill do?**

HB 126 Section 1 allows an involuntarily dissolved Alaska Native village corporation to be reinstated as the same corporation at any time under the Corporations Code, AS 10.06.960. The statute addressed in Section 1 of this bill does not fall within the regulatory authority of the division. The Corporations Code is regulated by the Division of Corporations, Business, and Professional Licensing ("CBPL").

Currently, the division has jurisdiction over proxy solicitations for the annual meetings of ANCSA corporations that have total assets exceeding $1 million and have 500 or more shareholders. These ANCSA corporations are required to file a copy of all annual reports, proxies, consents/authorizations, proxy statements, and other materials related to proxy solicitations with the division. The division then makes these documents available for the public to view.

Section 2 of this bill falls under the division's jurisdiction and Section 2 amends AS 45.55.139 Reports of corporations, by repealing the $1 million total asset requirement and amending which ANCSA corporations must report to the division. Under the amendment, only ANCSA corporations that had a class of equity security held of record by 500 or more original shareholders when the corporation was originally organized must report to the division. Currently approximately 59 ANCSA regional and village corporations meet the existing requirements who have $1 million in total assets and 500 or more shareholders and are required to submit annual meeting materials to the division. The number of original shareholders is not readily available; however, division staff have conducted online research and estimate the number of corporations that will be required to report to the division under the amended language is approximately 22 ANCSA corporations (12 regional corporations and 10 village corporations).

The division would be unable to assist Alaska Native shareholders of ANCSA corporations that are no longer required to report annual meeting materials to the division. Although the Corporations Code requires certain information to be available to shareholders; if a shareholder files a complaint under the Corporations Code against an ANCSA corporation that fails to provide required reports such as financial statements, enforcement would likely require civil action through a privately hired attorney. The division is unclear on what action CBPL may be able to take if a shareholder files a complaint against an ANCSA corporation, under the Corporations Code, if the corporation failed to provide required reports.

The division does not anticipate fiscal impact from this legislation.

**Detailed Sectional Analysis**

- **Section 1.** AS 10.06.960(k) is amended to add language that a corporation may only be reinstated within two years from the date of the certificate of involuntary dissolution. Amends that a Native village corporation may be reinstated at any time.

- **Section 2.** AS 45.55.139 is amended to read:
  After Act) add "with"
  Delete "that has total assets exceeding $1,000,000 and"
  After 500 or more add "original shareholders when the corporation was originally organized"
  Before shall delete "persons"

- **Section 3.** Provides an effective date immediately under AS 01.10.070(c).

**Companion or Similar Bills**

There is no companion legislation for HB 126. Currently there is no rider bill.

There was a committee substitute (34-LS0099\H) adopted in the last hearing in Senate Labor & Commerce adding Section 2. Section 2 reduces the number of Alaska Native Claims Settlement Act (ANCSA) corporations that are required to report to the division to those that have 500 or more original shareholders when the corporation was originally organized. It was introduced by the bill sponsor Representative Foster and appeared to be on behalf of the Alaska Native Village Corporation Association.

**Support/Opposition of the Bill**

Support of the Bill:
Curtis McQueen, Executive Director, Alaska Native Village Corporation Association (ANVCA), (907) 980-2677
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**Bill Signing ceremony suggestions (if applicable)**

Alaska Native Village Corporation Association (ANVCA)
Curtis McQueen, Executive Director (907) 980-2677

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**Commissioner's Signature:** ______________________ **Date:** 6/8/2026

*I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.*